

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Appeal No. 1495 of 2017

*[On appeal from judgment dated
12.09.2017 of the Lahore High Court,
Multan Bench Multan passed in Civil
Revision No.664-D/10]*

Zafar Hussain Khan (deceased) through his LRs. ... Appellants

Versus

Mst. Farhana Almas (deceased-issueless) and others. ... Respondents

For the Appellants: Mr. Dil Muhammad Alizai, ASC.

For Respondents No.2-3: Mr. Intizar Muhammad Khan, ASC.
Ch. Muhammad Aslam Ghuman, ASC.

For Respondent No.1: Died (issueless).

Respondents No.4-7: *Ex-parte*.

Date of Hearing: 20.05.2026.

ORDER

Muhammad Shafi Siddiqui, J. This appeal has been filed by the appellants under Article 185(2)(d)(e) of the Constitution of the Islamic Republic of Pakistan, 1973, as of right, against judgment dated 12.09.2017 passed by the Lahore High Court, Multan Bench, Multan, whereby civil revision filed by the respondents was allowed and the judgment and decree dated 16.04.2010 of the learned Additional District Judge, Layyah (**‘Appellate Court’**) was set aside and upheld the judgment and decree dated 21.07.2009 of the learned Civil Judge, Choubara (**‘Trial Court’**) and suit filed by the appellants was dismissed.

2. Facts in brief leading to the disposal of the instant appeal are that property measuring 200 *kanals*, having *khata* No.153 situated in Mouza

Sumra Thal Kalan Janoobi, Tehsil Choubara, District Layyah (**‘the suit property’**) was owned by one Mst. Parveen Batool, who was daughter of Lal Khan and wife of Sardar Khaliqdad Khan (predecessor-in-interest of appellants and some of the respondents). The appellant (Zafar Hussain Khan) is the real son and respondent No.1 (Mst. Farhana Almas), respondent No.2 (Firdos Raza Khan), respondent No.3 (Mst. Uzma Naheed), respondent No.4 (Rashid Abbas Khan) and respondent No.7 (Zarya Kalsoom) are the real daughters and sons of Mst. Parveen Batool respectively. The suit property, as claimed, was gifted to the appellant (Zafar Hussain Khan) by Mst. Parveen Batool *vide* gift mutation No.609 dated 29.12.1996 and the said gift was accepted and possession of the suit property was delivered. The said gift was challenged by respondent No.1 (Mst. Farhana Almas) by filing an application before the District Collector, Layyah, which was rejected on 27.08.1997, appeal preferred there-against was also rejected on 10.10.1998 by the Commissioner, Dera Ghazi Khan and thereafter a revision petition was filed before the Member, Board of Revenue, Punjab, Lahore, which was accepted on 16.01.2002 and the gift mutation was ordered to be cancelled.

3. A suit for declaration was filed by the appellants (Zafar Hussain Khan) against the said decision of the Member, Board of Revenue, Punjab, Lahore before the Trial Court, which was contested by respondents No.1 to 3 by filing their joint written statement and denied the claim of the appellants. Some of the respondents were declared *ex-parte* by the Trial Court. Issues were framed and evidence was produced by both the parties. The learned Trial Court *vide* judgment and decree dated 21.07.2009 dismissed the suit filed by the appellants. Feeling aggrieved by the said judgment and decree of the Trial Court, the appellant filed an appeal before the Appellate Court, who *vide* judgment dated 16.04.2010 allowed the appeal of the appellant and set aside

the judgment and decree of the Trial Court dated 21.07.2009 and decreed the suit.

4. Being dissatisfied with the judgment of the Appellate Court, the respondents filed civil revision before the Lahore High Court, Multan Bench, Multan which was allowed *vide* impugned judgment dated 12.09.2017 and judgment of the Appellate Court was set aside and suit of the appellant was dismissed, hence this direct civil appeal.

5. We have heard the learned counsel for the appellants and learned counsel for respondents No.2 and 3 and perused the material available on record. The forums mentioned in paragraph 2 above are adjudicatory forums where reliefs were claimed and denied on merit. Once such revenue forums are exhausted, the civil court was approached as a second bite to the cherry as neither any jurisdictional flaw was shown nor any mala-fide was shown. Thus, in the absence of these, a second recourse cannot be provided to litigant. Once the choice of forum to confer jurisdiction is exercised, the doctrine of election would also come in the way. Thus, the suit was rightly dismissed and we do not find any reason to interfere in the findings recorded. Therefore, this appeal is dismissed.

Judge

Judge

Islamabad:
20.05.2026

Approved for Reporting
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